



U.S. Department
of Transportation
**Research and
Special Programs
Administration**

400 Seventh St., S.W.
Washington, D.C. 20590

MAY 3 2002

DOT-E 12925

EXPIRATION DATE: April 30, 2003

1. GRANTEE: U.S. Department of Energy
Oak Ridge, TN

(See Appendix A to this document for a list of additional grantees)

2. PURPOSE AND LIMITATION:

a. This exemption authorizes the one-way, one-time transportation in commerce of solidified sodium metal in one non-DOT specification steel and concrete bulk container. This exemption provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein.

b. The safety analyses performed in development of this exemption only considered the hazards and risks associated with transportation in commerce.

3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 173.244 in that a non-DOT specification package is not authorized except as specified herein.
5. BASIS: This exemption is based on the application of the U.S. Department of Energy dated January 23, 2002, submitted in accordance with § 107.105 and the public proceeding thereon.

6. HAZARDOUS MATERIALS (49 CFR § 172.101):

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Hazardous Material Description			
Proper Shipping Name	Hazard Class/ Division	Identi- fication Number	Packing Group
Sodium	4.3	UN1428	I

7. SAFETY CONTROL MEASURES:

a. PACKAGING - Packaging prescribed is one non-DOT specification steel and concrete bulk container. The packaging is designed with an outer casing of 0.5 inch steel and an inner casing of approximately one foot thick concrete. The outer dimensions of the package are approximately 4.5 ft. x 3.4 ft. x 2.5 ft. and weighs approximately 16,500 pounds.

b. OPERATIONAL CONTROLS -

(1) Only a one-time, one-way transportation is authorized from GTS-Duratek, Memphis, TN to the U.S Department of Energy, Oak Ridge National Laboratory, Oak Ridge, TN.

(2) The package must be covered with sealed plastic sheeting and transported in a refrigerated freight container.

(3) The package must be securely blocked and braced during transportation in conformance with the requirements of §§ 393.100 - 393.106.

(4) Shipment must be made by a contract carrier under the exclusive use of Bechtel Jacobs.

(5) The shipment must be tracked via satellite at all times during the shipment from Memphis, TN to Oak Ridge, TN.

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8. SPECIAL PROVISIONS:

a. A current copy of this exemption must be maintained at each facility where the package is offered or reoffered for transportation.

b. The non-DOT specification steel and concrete bulk container must be plainly and durably marked "DOT-E 12925" as specified in § 172.302(b) and (c).

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.10. MODAL REQUIREMENTS: A current copy of this exemption must be carried aboard the motor vehicle used to transport the package covered by this exemption.11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this exemption must receive training on the requirements and conditions of this exemption in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this exemption, including display of its number, when this exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (Sections 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the

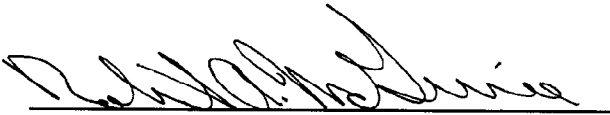
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holder(s) of this exemption must inform the AAHMS, in writing, of any incident involving the package and shipments made under the terms of this exemption.

Issued in Washington, D.C.:



Robert A. McGuire
Associate Administrator for
Hazardous Materials Safety

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(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

Copies of this exemption may be obtained by accessing the Hazardous Materials Safety Homepage at <http://hazmat.dot.gov/exemptions> Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

PO: PTolson